

STATE OF NEW YORK

3399--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. GONZALEZ-ROJAS, HEVESI, BURDICK, LEVENBERG, CRUZ
-- read once and referred to the Committee on Correction -- recommit-
ted to the Committee on Correction in accordance with Assembly Rule 3,
sec. 2 -- committee discharged, bill amended, ordered reprinted as
amended and recommitted to said committee

AN ACT to amend the correction law, in relation to screening incarcerat-
ed individuals for eligibility for public benefits prior to release

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 77 to
2 read as follows:

3 § 77. Public benefits screening. 1. It shall be the duty of an offi-
4 cial of any institution under the jurisdiction of the commissioner to
5 cooperate with an authorized agency of the department of social services
6 to, at least thirty days prior to release, screen incarcerated individ-
7 uals for eligibility for public benefits. Public benefits shall
8 include, but not be limited to, the supplemental nutrition access
9 program pursuant to section ninety-five of the social services law,
10 special supplemental nutrition program for women, infants, and children
11 (WIC) under 42 USC § 1786, and the home energy assistance program (HEAP
12 as administered by the office of temporary and disability assistance, in
13 accordance with section one hundred fifty-eight of the social services
14 law, 42 USC § 1383 and section two hundred nine of the social services
15 law, temporary assistance, supplemental security income and state
16 supplemental payments. Any individual determined eligible to apply for
17 a program shall be provided assistance for making such application if
18 requested by the individual.

19 2. The department shall be required to report annually to the gover-
20 nor, the temporary president of the senate and the speaker of the
21 assembly on participation in such public benefits screening program.
22 Such reporting shall include metrics on the following:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) how many people were deemed eligible for at least one type of
2 benefit, disaggregated by type of benefit;
3 (b) for how many people were applications submitted, disaggregated by
4 type of benefit;
5 (c) for any people deemed eligible but for whom applications were not
6 submitted, disaggregated by demographic; and
7 (d) the reason that such applications were not filed, disaggregated by
8 type of benefit and by reason.

9 § 2. This act shall take effect on the first of January next succeed-
10 ing the date upon which it shall have become a law. Effective immediate-
11 ly, the addition, amendment and/or repeal of any rule or regulation
12 necessary for the implementation of this act on its effective date are
13 authorized to be made and completed on or before such effective date.